

JUSTIFICATION FOR FAIR OPPORTUNITY EXCEPTION

Solicitation No.: 68HE0925R0009

Contract No.: 68HE0118D0010

Task Order No.: 68HE0925F0045

Contractor: TECHLAW, INC

**Project Name: Laboratory for Energy-Related Health Research/Old Campus Landfill (LEHR),
Superfund Site ID - 097J, EPA ID # CA2890190000**

In accordance with FAR 16.505(b)(2), the proposed contractual action is pursuant to the statutory authority of 41 U.S.C. 253(c).

I. Ordering Activity

U.S. Environmental Protection Agency, Pacific Southwest Region 9, Contracts Office.

II. Applicable TO Contract Number, Task Order Number

Environmental Services and Operations (ESO) Technical Oversight Task Order for Laboratory for Energy-Related Health Research/Old Campus Landfill (LEHR) (Contract No. 68HE0118D0010, Task Order No. 68HE0920F0088).

III. Description of Services Being Ordered

The scope of this sole-source contract is to provide continued expert technical assistance support for the oversight of CERCLA remedial cleanup activities at the Laboratory for Energy-Related Health Research (LEHR), in accordance with the 1994 Federal Facility Agreement (FFA). The total estimated value of this Task Order is \$551,775.32 and the anticipated performance period is March 14, 2025 to March 13, 2028. The Task Order is being awarded as a logical follow-on to a competed award pursuant to the exception to Fair Opportunity at FAR 16.505(b)(2)(i)(C).

IV. Rationale

FAR 16.505 requires an ordering activity to justify its actions when fair opportunity is restricted. The specific circumstance that justifies restriction for this acquisition is FAR 16.505(b)(2)(i)(C), the order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

Background

The 15-acre Laboratory for Energy Related Health Research/Old Campus Landfill site (LEHR) consists of two areas – the Department of Energy area and the University of California-Davis area, DOE and UCD, respectively. From the 1950s to the mid-1980s, DOE conducted low-level radiation studies on animals. The primary radioactive materials used were radium-226, strontium-90, and carbon-14. From the early 1940s until 1967 UCD campus waste disposed of in

three landfill units, resulting in groundwater contamination. The primary contaminants are chloroform, hexavalent chromium, nitrate, 1,2,3-trichloropropane and its breakdown product 1,2-dichloropropane, and 1,4-dioxane.

Site Status of the DOE Area:

DOE issued a Record of Decision (ROD) in 2009 that identifies the cleanup for which it is responsible. Because DOE cleaned up contaminated soil from 1996-2002 before the ROD was issued, the ROD remedy calls for groundwater monitoring and restrictions on the future use of the property. DOE will conduct Five-Year Reviews to ensure that the cleanup remains protective. The 2021 Five-Year Review identified several issues for follow-up including: the need to modify the groundwater sampling monitoring plan, determining how to dispose of potentially radiologically impacted trees and other vegetation, and how to address anomalous hexavalent chromium groundwater results. These issues will be addressed during the anticipated performance period and will be reported in the next Five-Year Review that is scheduled for 2026.

Site Status of the UCD Area:

Soil: EPA issued a ROD that identifies the cleanup remedy for the three historic landfills and adjacent soils. The remedy includes leaving waste in place and the construction of a cap over each landfill. The cap will prevent water from permeating the landfill and will minimize the spread of contamination into the underlying groundwater. The design for the landfill caps has been completed and construction is expected to start in 2025 or 2026. The ROD for the soil includes the following components:

- Installation of multi-layer caps where contaminated soil and solid waste remains in place in order to reduce leaching of contaminants into groundwater and to limit human exposure;
- Creation of drainage swales, ditches, and storm water retention ponds;
- Expansion of the current storm water drainage system;
- Institutional controls to restrict future land use (no residences, schools, hospitals); and
- Long-term groundwater monitoring to confirm the landfill caps are working as expected.

Groundwater: EPA and UCD are continuing to evaluate the groundwater at the site. UCD has been conducting a small-scale pilot study to evaluate if injection of compounds can help speed up the biodegradation of chloroform and 1,2,3-Trichloropropane. In addition, there is an ongoing groundwater extraction and treatment system pilot study to address hexavalent chromium and chromium concentrations in the shallowest groundwater beneath the site to evaluate whether groundwater extraction can be used to address hexavalent chromium. The interim removal action system pumps groundwater to contain and minimize off-site migration of chloroform from deeper groundwater.

Site Milestone	Date(s)
Initial Assessment Completed	02/1990
Placed on the National Priorities List	05/1994

Remedial Investigation Started	09/1994
DOE Record of Decision	09/2009
DOE Remedial Action Started	01/2011
UCD Soil Record of Decision	09/2016
Most Recent Five-Year Review	08/2021
UCD Landfill cap remedial design completed	12/2023

Under RAF ESO Contract No. 68HE0118D0010, Task Order No. 68HE0920F0088, TECHLAW, INC provides the EPA with Federal Facility oversight of site characterization, investigation, work and ongoing remedial cleanup activities.

Justification Summary FAR 16.505(b)(2)(i)(C)

The EPA has a continued need for TECHLAW, INC. to provide uninterrupted and continuous expert technical assistance support for oversight of DOE and UCD remedial activities to characterize the nature and extent of contamination and associated risks, evaluate potential remedial options, review post-ROD documents, and analyze remedial action performance.

TECHLAW, INC. has the unique qualifications and necessary knowledge, staff, and experience to complete this work in the most cost effective and efficient manner as it currently provides the services described herein for the LEHR site. TECHLAW, INC. has participated in site activities since being hired as a primary contractor under the EPA RAF-ESO Contract 68HE0118D0010 Task Order 68HE0920F0088. TECHLAW, INC. has been instrumental in providing timely site-specific subject matter expert technical assistance for EPA in the following areas:

1. TECHLAW, INC.'s historical and current work providing technical support has given EPA a critical understanding of the LEHR site characterization, particularly around PFAS and hexavalent chromium contamination at the site. The current site conceptual hydrogeologic model does not explain anomalous groundwater gradients observed nor the occurrence of elevated hexavalent chromium in groundwater, and TECHLAW, INC.'s assistance in determining data gaps in the model have been essential in EPA providing comprehensive comments to define additional actions that need to be taken. TECHLAW, INC.'s long-standing technical understanding and in-depth knowledge support EPA in critically analyzing and investigating data gaps, evaluating potential remedial technologies, and understanding long-term remedy performance. TECHLAW, INC. staff are intimately familiar with the remedies in place for the DOE and UCD portions of the site. TECHLAW, INC.'s senior hydrogeologist routinely demonstrated expert technical understanding in providing EPA with information on time-sensitive decision-making steps.

2. TECHLAW, INC. has developed a substantial body of institutional knowledge specific to LEHR, providing significant value to the government at the current stages of work. Their understanding of years of groundwater monitoring at the site allows for well-informed decision-making crucial to resolving data gaps and evaluating data trends. This long-term understanding of the

groundwater data and well network is essential for meaningful input. TECHLAW, INC. consistently demonstrates expertise in the LEHR monitoring well network and monitoring program through high-value recommendations to improve groundwater monitoring program efforts. Because TECHLAW, INC.'s staff are familiar with the decades-long groundwater monitoring program, EPA has been able to analyze and optimize the monitoring program where necessary. This continuity of knowledge has been critical for post-ROD decision-making in the past and will continue to be crucial in the future (e.g., data gap analysis, background characterization, and treatability study evaluation). The UCD portion of the site is at a critical juncture, and they will begin constructing the landfill cap in accordance with the 2016 Soil ROD after years of COVID-era delays. TECHLAW, INC.'s deep knowledge of the remedy is essential to EPA's successful oversight of the construction of the remedy.

3. TECHLAW, INC. is uniquely qualified to assist EPA in meeting its ongoing needs at the LEHR site. TECHLAW, INC. has conducted extensive document reviews and is familiar with the volumes of technical site documents and data dating back to the initiation of the 1999 FFA. TECHLAW, INC. also has a comprehensive understanding of MOUs between DOE and UCD, the UCD Consent Decree, and the UCD Administrative Order on Consent, all of which are key to understanding responsibilities and rationale behind which party is responsible for which site activities. Critical environmental investigations, remedy construction, cleanup planning, assessments, and decision-making are being conducted based on decades of work that TECHLAW, INC. was intimately involved with effectively reviewing and overseeing. TECHLAW, INC.'s knowledge of these decades of site work performed and documents developed is critical to providing expert and relevant technical assistance to EPA on the new information/analysis being collected and presented. As mentioned, TECHLAW, INC.'s senior hydrogeologist provides expert technical assistance at LEHR (also serving as the senior project manager) and provides unique insight into the complex geologic framework. Other critical staff include radiological and PFAS experts, two site issues at LEHR that are a high priority for EPA.

4. TECHLAW, INC.'s senior hydrogeologist, based in the Bay Area, offers on-site support on short notice, providing significant cost savings to the government. Regular on-site meetings and oversight are essential for LEHR, and TECHLAW, INC.'s senior hydrogeologist is always ready to provide this support, often on short notice as site activities develop. This support is not only key to the EPA's effective project oversight but also represents a potentially significant cost savings, as TECHLAW, INC. can attend meetings or provide oversight by driving to the site, eliminating the costs of a plane flight or hotel.

Conclusion

LEHR is in a critical stage of beginning remedy construction for the UCD part of the site, as well as ongoing investigations and operation and maintenance of ongoing remedies on the DOE part of the site. As identified above, TECHLAW, INC. is uniquely qualified to provide the site-specific subject matter expertise to meet EPA's time-critical needs for expert technical assistance at the level of quality required because of their historical and current work providing technical support for the site. Any lapse in the specialized technical assistance support provided by

TECHLAW, INC. will greatly impact EPA's ability to oversee DOE and UCD cleanup efforts and ensure compliance with applicable laws and regulations.

EPA estimates it would take approximately 12 months for a new contractor to provide technical support at the level of quality required for LEHR. To become familiar with the project, the new contractor would need to revisit extensive amount of work completed by TECHLAW, INC., DOE, and UCD, resulting in duplicative costs and requiring considerable additional government funding, resources, and time that would not be recoverable through competition.

This is the first time this exception to Fair Opportunity has been used for this requirement.

Fair and Reasonable Cost Determination

The Contracting Officer will evaluate the pricing for the order to determine that the costs to the Government are considered fair and reasonable. The pricing is expected to be based upon similar labor rates that have already been incorporated into the current task order 8HE0919F0124 for which TECHLAW, INC. is the primary contractor. These rates/costs were previously determined to be fair and reasonable. Furthermore, the contractor has agreed to ceiling labor rates at the IDIQ level for each contract year under RAF Contract 68HE0118D0010. The Contracting Officer and the Program Office will also review the anticipated level of effort to ensure that it is consistent with the work required by the follow-on requirement. During performance, the labor hours incurred by the contractor will be subject to surveillance by the Contracting Officer's Representative (COR). Travel Incurred by the contractor will be reviewed by the government and will be reimbursed only for actual expenses incurred that are determined to be reasonable and within the limitations of the Federal Travel Regulations (41 Code of Federal Regulations (CFR), Chapters 300 through 304).

Overcoming Barriers to Competition

There are no barriers to competition. The Task Order is being awarded to TECHLAW, INC. in the interest of economy and efficiency because it is a logical follow-on to a competed Task Order for which all eligible ID/IQ ESO Contractors were given a fair opportunity to be considered.

Approvals

Reviews and approvals must be performed in accordance with EPA Acquisition Guide Section 1.6 Attachment A and FAR 16.505(b)(2)(ii)(C).

In accordance with FAR 16.505(b)(2)(U)(D), within 14 days after placing the order, the Contracting Officer will publish a notice in accordance with FAR 5.301 and make publicly available the Justification at www.fedblzopps.gov and on the website of the agency, which may provide access to the justification by linking to www.fedblzopps.gov, for a minimum of 30 days.

In accordance with FAR 16.505(b)(2)(ii)(C), I certify the rationale and supporting data which forms the basis of this justification as complete and accurate. As such, this justification is approved.

SAMANTHA WATTS

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WATTS
Date: 2025.01.23 13:36:01 -08'00'

1/23/25

Task Order Contracting Officer

Date

REDE SHIFFERAW

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SHIFFERAW
Date: 2024.11.20 16:53:29 -08'00'

Regional Acquisition Manager

Date

___ Not Applicable ___

Agency Advocate for Competition

(Required for orders exceeding \$700,000, but not exceeding \$13.5 million)

Date

Head of the Contracting Activity
(Required for orders exceeding \$13.5 million, but not exceeding \$68 million)

Date

Senior Procurement Executive
(Required for orders exceeding order exceeding \$68 million)

Date
